

to a person of low condition. Sometimes too the position of the wound makes an outrage aggravated, as where a man is struck in the eye. Whether the person on whom such an outrage is inflicted is independent or in the power of another is almost entirely immaterial, it being considered aggravated
 10 in either case. Finally, it should be observed that a person who has been outraged always has his option between the civil remedy and a criminal indictment. If he prefers the former, the penalty which is imposed depends, as we have said, on the plaintiff's own estimate of the wrong he has suffered; if the latter, it is the judge's duty to inflict an extraordinary penalty on the offender. It should be remembered however that by a constitution of Zeno persons of illustrious or still higher rank may bring or defend such criminal actions on outrage by an agent, provided they comply with the requirements of the constitution, as may be more clearly as-
 11 certained by a perusal of the same. Liability to an action on outrage attaches not only to him who commits the act,—the striking of a blow, for instance—but also to those who maliciously counsel or abet in the commission, as, for in-
 12 stance, to a man who gets another struck in the face. The right of action on outrage is lost by condonation; thus, if a man be outraged, and takes no steps to obtain redress, but at once lets the matter, as it is said, slip out of his mind, he cannot subsequently alter his intentions, and resuscitate an affront which he has once allowed to rest.

TITLE V.

OF QUASI-DELICTUAL OBLIGATIONS.

The obligation incurred by a judge who delivers an unjust or partial decision cannot properly be called delictual, and yet it does not arise from contract; consequently, as he cannot but be held to have done a wrong, even though it may be due to ignorance, his liability would seem to be quasi-delictual, and a pecuniary penalty will be imposed on him at
 1 the judge's discretion. Another case of quasi-delictual obligation is that of a person from whose residence, whether it be his own, or rented, or gratuitously lent him, anything is